
IN THE COURT OF APPEALS OF MISSISSIPPI
No. 2020-CP-01259-COA

ORIGINAL

MATTHEW OLIVER REARDON
Appellant

FILED

v.

FEB 01 2022

STATE OF MISSISSIPPI
Appellee

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SUPREME COURT
COURT OF APPEALS

On Appeal from the Circuit Court
of Lafayette County, Mississippi

REPLY BRIEF / PRO-SE SUPPLEMENTAL BRIEF

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ORAL ARGUMENT REQUESTED

IN THE COURT OF APPEALS OF MISSISSIPPI
No. 2020-CP-01259-COA

MATTHEW OLIVER REARDON
Appellant

v.

STATE OF MISSISSIPPI
Appellee

On Appeal from the Circuit Court of
Lafayette County, Mississippi

CERTIFICATE OF INTERESTED PERSONS

The undersigned pro-se Appellant, pursuant to Mississippi Rules of Appellate Procedure 28(a)(1), states that the following listed persons have an interest in the outcome of the case.

REPRESENTING APPELLEE

Judge John Kelly Luther
Presiding Trial Court Judge

Mickey Maitre
Assistant District Attorney
Oxford, MS 38655

Lynn Fitch
MS Attorney General
Jackson, MS

Ashley Lauren Suiser
Representing the State of MS

REPRESENTING APPELLANT

Matthew O Reardon
PRO-SE APPELLANT

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SUPPLEMENTAL STATEMENT OF ISSUES

- 1) Did Appellant receive inadequate legal representation from his legal counsel which was prejudicial to Appellant and that adequate representation likely would have resulted in a different, favorable outcome to the Appellant?
- 2) Should the Trial Judge have had subject matter jurisdiction to rule upon and deny an evidentiary hearing requested after:
 - a) This trial judge came in receipt of emails originally sent to his court administrator¹ by appellant detailing out significant grievances and sustained injury through what appellant described equated to a complete fundamental miscarriage of Justice through bizarre and shocking events which deprived appellant of key procedural and substantive due process rights. Appellant only did what he was advised to do by Ms Sturdivant through sending her a narrative of the shocking criminal acts and occurrences involving Lafayette County Officials which had fully suppressed and got rid of appellant through some of the most unscrupulous of ways. Appellant stated his goal was to be granted an evidentiary hearing to give further evidence of the claims he stated in order to reverse his plea given under duress and through coercion which should have never been allowed to be considered to be valid. Appellant had no legal representation and a very limited legal knowledge at that time and simply reached out for advice from the chambers of the original trial judge. **Did this create a conflict of interest in which the trial judge should have been obligated to recuse?**

¹ The emails referenced to are attached as an exhibit to Appellant's motion to Recuse filed in Post-Conviction Relief (L20-316). I do not share access to the electronic filing system to notate the proper number of the Clerk Paper (CP) to reference, so each reference will be made similar to this.

- b) When adding in a mitigating factor that the initial assigned circuit court judge for the post-conviction relief proceeding was Judge Kent Smith whom this matter was assigned to from the date PCR was filed on July 7, 2020 until Appellant filed a motion for recusal on August 12, 2020². **Did the Trial Judge (Luther) have an obligation to recuse when requested after being made aware of the judicial assignment for this matter being another Circuit Court Judge and the serious concerns Petitioner had surrounded a high preponderancy of there being a conflict of interest?**
- c) **Did Judge Luther's insistence upon ruling on behalf of assigned circuit court judge Kent Smith and the further alteration in the system of the assigned judge on August 12 2020 immediately following appellant submitting a motion for recusal amount to Fraud being Committed on behalf of the court which in turn prejudicially affected the outcome of this proceeding and infected it with additional significant manifest error requiring relief and intervention by this high court, and likely a further, in-depth investigation?**
- 3) **Can a plea entered weeks or months after the deprivation of mandated procedural and substantive due process rights excuse the State of their mandatory obligation to safeguard the liberties of all citizens through ensuring all accused are entitled to the same equal rights under state and federal law to ensure a fair hearing?**

² Appellant took random screenshots of his case as listed in Delta Computer Systems which clearly show the assigned judge being switched from Judge Kent Smith to Judge John Kelly Luther AFTER the motion to recuse was submitted on August 12, 2020. A Single page exhibit showing this will be attached to the back of this brief as evidence of the changes. In addition, Appellant raises serious concern to this happening again in the same court and involving the same two judges randomly being switched around during the first week of December 2021 involving cause number L21-494

STATEMENT OF THE CASE

Based upon a report created on May 30, 2017, it was stated that on May 24, 2017 Jarrett Bundren, an investigator with Lafayette County Sheriff's Department received via a phone call stating that I, Matthew Reardon, was making threats towards an individual by the name of Todd Lynch. Affiant has effortlessly made the claim that this entire fiasco amounted to a crime alleged that was never truly committed in order to suppress and prevent an outspoken conservative, 2nd amendment activist from speaking at a public forum which he was slotted in advance to speak at on June 6, 2017; the day that just so happened to be election day for Robyn Tannehill. Completely violating the constitutional rights of another by way of a knowingly false charge which led to false imprisonment was not enough for Lafayette County Officials, as they deprived nearly all procedural due process rights which all accused are to be afforded in order to contrive a conviction stemming from intimidation and fear, not facts and evidence. Affiant was held illegally confined in the Lafayette County Detention Center from the time of his arrest, May 26 2017 until he received an initial/bond hearing on May 30 2017. This amounted to nearly 96 hours before movant was brought before a judge, twice the maximum length allowable under the Mississippi Rules of Criminal Procedure which had recently been updated prior to affiant's arrest and incarceration to follow.

MRCP Rule 5.1(b)(3) states if a person is taken into custody, the person shall be taken without unnecessary delay, and in no event later than forty-eight (48) hours after arrest, before a judge who shall proceed with an initial appearance.

- a) If the person arrested is not taken before a judge within forty-eight (48) hours, the person detained shall be released on execution of an appearance bond in the minimum amount set pursuant to Rule 8 and directed to appear at a specified time and place.
- b) Affiant tried to assert his complete innocence through a bill of sale proving not only that it was an impossibility for him to have committed the crime charged, but that in fact no crime was committed.
- c) Judge Carolyn Bell cut Affiant off from speaking on two separate occasions to stating he had “the right to remain silent” just prior to setting a completely outrageous appearance bond.
- d) Judge Bell never cared to advise me that I had the right to a Preliminary Hearing. MRCrP 8.1 lists a table recently updated approximately a month prior showing ranges for types of crimes.
- e) A crime receiving a maximum incarceration of 10-years should receive a \$5,000-\$50,000 Appearance Bond. Affiant’s alleged crime received a maximum 5-years incarceration yet was set at \$150,000.
- f) Due to it already going well beyond 48-Hours before affiant was afforded an initial hearing, Judge Bell was obligated to issuing an appearance bond of \$5,000 or releasing affiant on his personal recognizance.**

Appellant realleges his claims he has continuously made of improper influence being the key factor in what had occurred and that this move had likely been decided upon just prior to the initial hearing commencing. Affiant reasserts his claims of needing to get his daughter out of an ill-brought, fraudulent, and deceptive chancery court matter

which just so happened to be coincidentally piled on at the same time to further stack the deck. Upon pleading out following extended mental torture, Lafayette County Officials insisted on a banishment being a stipulation in order to get rid of their problem and source of liability for at least the newly elected mayor's first term, along with fully disarming him, and insisting upon the signing of a covenant to not sue Lafayette County and Oxford employees and officials, Sheriff's Department, and The Lynch's. However, exculpatory evidence of innocence existed all along, and that a preliminary hearing was never afforded. Bond was set disproportionately and unconstitutionally high in a clear violation of the 8th Amendment to the Federal Constitution as the bond set at \$150,000 was three times higher than the established guidelines stated even for an alleged crime that could see twice the potential length of incarceration if found guilty. A motion for Habeas Corpus seeking bail reduction was filed June 5, 2017 alleging that Affiant was illegally confined and restrained of liberty in the Lafayette County Detention Center with bail in the amount of \$150,000 and that confinement was illegal because bail was excessive, oppressive and beyond the financial means of Affiant or his family and loved ones. This Habeas Corpus Petition placed Lafayette County on notice of violations of the Eighth and Fourteenth Amendments to the United States Constitution and §§ 26 and 29 of the Mississippi Constitution at that time. At the bare minimum, this motion commanded that the Sheriff produce the affiant and show good cause why he should not be discharged from such illegal confinement immediately or have his bond reduced to a constitutional amount. The Habeas Corpus was approved to proceed in forma pauperis on June 7, 2017. However, the approved petition was never proceeded upon and

coincidentally Affiant was never even informed that this petition was filed on his behalf much less approved. Approximately 2 months after plea was entered, A Psychologist in Tupelo whom was the referring doctor for Lafayette County Chancery Court, Dr Joe Ed Morris, notated coercion on his report as the chief reason for such plea. Of course, a simple transcript into the matter would not reflect a guilty plea being the direct result of coercion and improper legal assistance/malfeasance on its face. However, this becomes increasingly clear when the facts are truly examined from a binary standpoint of posing the question of did they happen or did they not. In July of 2021, Appellant was diagnosed with bipolar disorder which went undiagnosed at the time of Appellant's plea. This mental illness encompasses impulsive/manic decision making at times and can lead irrational decision-making particularly under the levels of confusion and stress which appellant was blindsided with in the criminal proceeding brought and particularly in the absence of guaranteed due process protections and rights which were deprived. While the appellant has refrained from making the assertion that County Officials preyed on the impulses of an individual whom went undiagnosed at that time , the level of resistance and lack of care, decency, and fairness the appellee and the trial judge has applied to this matter appealed on post-conviction relief begins to pose this particular question, particularly the individuals tasked with ensuring these rights are mandated seemingly defending and supporting the deprivation of these basic guaranteed procedural and substantive due process rights to an accused which in turn by its legal definition have led to a complete miscarriage of justice. Even more shocking comes all facts of resistance in trying to prevent facts and evidence from being

presented, hindering the true course of justice from taking place, and the attempt to abscond with an ill-contrived highly immoral and overwhelmingly unethical win which was based upon a plea stemming from complete denial of his procedural and substantive due process rights, the rules governing criminal procedure, and the guarantees and protections offered to each citizen in the United States and State of Mississippi Constitutions. Affiant claims this deprivation of rights due to all accused in combination with the coercion tactics places Lafayette County and its Officials in Direct violation of State and Federal Law, making his plea involuntary, void, and a violation of State Law which the State and Lafayette County should have never been allowed to be in receipt of in the first place.

That on July 7, 2020 Affiant filed his post-conviction relief in Lafayette County Circuit Court seeking complete reversal of his plea based on stated violations he became aware of. On July 30, 2020 Circuit Court Judge Kelly Luther **DENIED** affiant's motion for relief which was brought in the correct court and jurisdiction, with good merit, in good timing, and stated valid reasoning which the denial of an evidentiary hearing prevented the detailed facts, evidence, and claims from being made on the record in open court. Affiant alleges that denial of his post-conviction relief motion imposed prejudicial conditions further tainting the matter with biasness and favorability shown to the state and hindering the appellant in any way his right in seeking vindication on the matter. The grounds on which post-conviction relief was brought along with the alleged fraud conducted by the State and Lafayette County not only warranted but turned highly

prejudicial against the affiant when county officials contrived a fraudulent conviction in 2017 and beyond negligent and in fact injurious upon the affiant when Lafayette County Circuit Court refused to hold an evidentiary hearing or look at any fact stated when constitutional rights violations through complete procedural due process rights were alleged amounted to even more deprivation and even what now is alleged as a complete chilling of constitutional rights of all citizens through a complete refusal of the equal protections of the law. Up until 8/12/2020, the assigned judge on the post-conviction relief was Judge Kent Smith. However, Judge John Kelly Luther continued showing an interest in affiant's matters by way of coming in to DENY each motion submitted despite the assignment of the case belonging to Kent Smith. Affiant filed a motion for recusal on 8/12/2020 and upon submission of this motion, the official record was ALTERED to then reflect John Kelly Luther as the assigned judge.³ This was certainly a rather large cause for concern.

STANDARD OF REVIEW

An Individual moving for Post-Conviction Relief bears the burden of showing by a preponderance of evidence that he is entitled to relief. *Smith v. State*, 129 So. 3d 243, 245 (Miss. Ct. App. 2013). On review from the denial of a PCR motion, this Court “review[s] the trial court’s findings of fact for clear error and its determinations of law de novo.” When presented with clear procedural and substantive due process rights

³ Exhibit attached to back of this reply brief which goes to showing what appellant alleges was the fraudulent altering/reassignment of assigned judge on the matter

violations such as the violations which have been brought forth to the trial court and this appellate court, the state has a necessary obligation to offer corrective process

ARGUMENT

When assessing all facts associated with the original criminal charge this post-conviction relief stems from, it should become clear to any examiner or onlooker that Procedural and Substantive Due Process Rights were deprived in some of the most egregious of ways. A State can never be allowed to procure a conviction stemming from complete deprivation of procedural due process rights of the accused in the weeks and months leading up to a plea being made.

“The prohibition in the Constitution that no person shall be deprived of his liberty except by due process of law was intended to guarantee the protection of fundamental and constitutional rights so that a fair trial may result, and where fundamental and constitutional rights are ignored due process does not exist and a fair trial can not be had.” *Brooks v. State*, 209 Miss. 150, 151 (Miss. 1950). It is the sole opinion of the appellant that this particular ruling gives reason to why Appellant submitted a motion for peremptory reversal and maintains the position that the matter upon which he submitted his peremptory reversal is indeed warranting of reversal and remand by this court based upon the deprivation of fundamental rights stated throughout this proceeding.

The allowance of such while forgiving, forgetting, and overlooking of the manifest errors committed by completely depriving a presumably innocent citizen of his or her liberty while neglecting obligations to provide the same rights to an accused that it is mandated to provide to all others results in prejudice to the accused and has a high preponderance of leading to a Fundamental Miscarriage of Justice such as what had occurred here. Prejudice is actual harm resulting from the alleged constitutional violation. *Thomas v.*

Lewis, 945 F.2d 1119, 1123 (9th Cir. 1991). In the extraordinary case, "[a] 'fundamental miscarriage of justice' occurs when 'a constitutional violation has probably resulted in the conviction of one who is actually innocent.'" *Boyd v. Thompson*, 147 F.3d 1124, 1127 (9th Cir. 1998) (quoting *Murray*, 477 U.S. at 495-496, 106 S.Ct. 2639). "The requirement, in safeguarding the liberty of the citizen against deprivation through the action of the state, embodies the fundamental conceptions of justice which lie at the base of our civil and political institutions." *Hebert v. Louisiana*, 272 U.S. 312, 316, 317, 47 S.Ct. 103. It is a requirement that cannot be deemed to be satisfied by mere notice and hearing if a state has contrived a conviction through the pretense of a trial which in truth is but used as a means of depriving a defendant of liberty through a deliberate deception of the court. Such a contrivance by a state to procure the conviction and imprisonment of a defendant is an inconsistent with the rudimentary demands of justice as is the obtaining of a like result by intimidation.

In the State's Brief, the Appellee contends that the Appellant failed to meet his burden of showing that any of his state or federal rights were violated and that he had a right to post-conviction relief. Appellant refutes this statement wholeheartedly, and further states that while he may not have sufficiently detailed out in his petition all state and federal violations to the Appellee's particular preference, he did in fact raise the fact that indeed his procedural and substantive due process rights were violated, and Appellant has not wavered in these claims. Appellant strengthened his claims as time progressed and he gained a greater knowledge and understanding of the laws and the

serious deprivations he sustained of guaranteed rights afforded to all accused, which the lack-there-of completely eliminates all fairness and equality from proceedings, and in no instance can these deprivations pass constitutional muster. In addition to this fact, a basic refusal by the State to offer these same mandated rights it affords to all accused in criminal proceedings, and it's refusal to offer mandatory corrective process when it becomes aware of such deprivations occurring, equates to additional Federal violations of appellants 14th Amendment Rights which protect all citizens from being subjected by the State to the deprivation of life, liberty, or property, without due process of law; nor the denying to any person within its jurisdiction the equal protection of the laws. Appellant raises the constitutionality of a plea given in the weeks or months following such prejudice and deprivation and respectfully requests this honorable court to give answer as to how this can pass the constitutional muster. The Appellee claims the application of a state harmless-error rule is, of course, a state question where it involves only errors of state procedure or state law. But the error from which these petitioners suffered was a denial of rights guaranteed against invasion by the Fifth and Fourteenth Amendments, rights rooted in the Bill of Rights, offered and championed in the Congress by James Madison, who told the Congress that the "independent" federal courts would be the "guardians of those rights." *Chapman v. California*, 386 U.S. 18, 21 (1967). Further, it has long been established through a multitude of cited case law, the court maintains discretion to address such issues on appeal even if they were waived and never properly presented to the trial court. See, e.g., *Tinnon v. Martin*, 716 So.2d 604, 613-14 (¶¶ 52, 57-58) (Miss.1998); *Fordice v.*

Bryan, 651 So.2d 998, 1001 (Miss.1995) ; *State Hwy. Comm'n of Miss. v. McDonald's Corp.*, 509 So.2d 856, 860, 863 (Miss.1987)

The State claims that for the first time on appeal, Appellant argued that (1) his attorney rendered "malfeasant legal representation; (2) he was coerced to plead guilty through the imposition of an excessive bond; (3) he was denied due process due to a delayed initial appearance and the denial of his right to a preliminary hearing; and (4) he has exculpatory evidence that entitles him to relief. (Appellant's Brief 6-15).¹ Further, the state claims that these are markedly different from the arguments he presented in the circuit court, and that he presented (with no argument) claims that the State violated his First, Eighth, and Fourteenth Amendment constitutional rights when he entered his guilty plea, and that he had involuntarily entered his plea based on a denial of his right to due process.² (CP 8-9). Appellant will address each of these independently and makes the argument that while he has gained a considerable amount of knowledge regarding to state and federal law that he had no prior knowledge of before having to represent himself pro-se, none of appellants statements or claims have changed and that the claims of the appellee are in fact not the case. Further had the trial court simply granted an evidentiary hearing as requested, these major deficiencies which were touched on in an email sent to Judge John Kelly Luther's Court Administrator Kathy Sturdivant would have been addressed on the record in open court

1) Attorney rendered malfeasant legal representation

Initially, Appellant was assigned a publicly appointed attorney for legal representation by the name of T.R Trout. Appellant had an initial consultation with his appointed attorney at the Lafayette County Detention Center where he disclosed all pertinent facts including that he had a bill of sale showing that the AR-15 the affiant attested to him "conveying fear" with on or before May 8, 2017 wasn't even acquired until May 20, 2017, 12 Days later. Appellant was not able to effectively communicate with his attorney to get status updates in seeking to have his bond lowered to a constitutionally fit amount that he could afford. He was also never informed that a Motion for Writ of Habeas Corpus seeking bail reduction was ever submitted by a staff attorney by the name of Kristian McCray who worked for Mr. Trout. On June 8, 2017 the motion submitted by McCray was approved to proceed, however this is the last thing filed or performed in the Habeas Corpus Civil Matter L17-233 up until it was dismissed on 11/30/2018 due to it going stale. Around the middle of June Appellant's mother retained a criminal defense attorney by the name of Brennan Horan out of Grenada, MS to replace Mr. Trout due to appellant's concerns stemming from a lack of communication from Mr. Trout. Horan met with appellant one time at the Lafayette County Detention Center supposedly to gather all of appellants stated facts as an initial consultation after being retained. However, Mr Horan never provided the circuit court with an entry of appearance and never entered a motion for discovery inquiring into the state's evidence on this information only charge which appellant stated his unwavering innocence to. Furthermore Mr. Horan showed a greater interest in appellant's agreement to signing a stipulated permanent protection order involving Rhea and Robyn Tannehill, further stating that if he agreed to it and signed it, that it should help in achieving relief and freedom from his then incarceration where his bond was set at \$150,000. Appellant states that this protection order should have and would have been challenged given any other scenario due to it containing complete

exaggerations of the truth and listing constitutionally protected activity, however, in the interest of freeing himself from the obnoxious situation he found himself in, he took his attorney's advice against his own better judgement and felt that agreement to such was extracted and extorted under the pretenses of fraud based upon the extended confinement and constitutional neglect through the deprivation of his rights at that point. Through multiple attempts of communication both to the original attorney whom filed the Motion for Writ of Habeas Corpus seeking bail reduction (McCray) and to the later retained attorney (Horan), both have refused communication and response as to if this Habeas Corpus matter was properly transferred and communicated from McCray to Horan, and which one or both would be responsible for the matter being approved to proceed yet not acted upon unbeknownst to Appellant. Naturally, it lacks all sense for appellant to have pled out to an information only crime alleged when a Habeas Corpus proceeding was approved to proceed citing appellant's confinement as unconstitutional through multiple violations of the State and Federal Constitution and when no discovery motion was ever propounded by appellant's legal counsel. This very important proceeding should have immediately been acted upon, where the lack thereof created a material breach by Appellant's legal council which in turn created an incurable and inexcusable injustice appellant aggrieved when his legal counsel failed to act regardless of where the responsibility fell as it was outside of the scope of responsibility, knowledge, and ability of appellant.

The appropriate standard for ineffective assistance of counsel requires both that the defense attorney was objectively deficient and that there was a reasonable probability that a competent attorney would have led to a different outcome. Strickland v. Washington, 466 U.S. 668 (1984)

2) At this point appellant would show based on multiple stated erroneous and bizarre occurrences that it should be plainly evident to see that both neglect of mandated obligations by the State flawed misrepresentation by his legal counsel led to a guilty plea as a last resort measure to achieving his freedom and liberty, and that the primarily it was the imposition of an extremely excessive and unfitting appearance bond set of \$150,000 which kept appellant unconstitutionally held in the Lafayette County Detention Center for 6-week's time in which the mental anguish and mental torture of the matter and refusal by Horan to act and perform the basic functions of his job ultimately led appellant to entering a plea of guilty which he has requested at the bare minimum a fair evidentiary hearing to examine all facts and evidence. In the Petition for Post-Conviction Relief, appellant cited violations of his First, Fourth, and Fourteenth Amendment Rights and that is indeed the case. An evidentiary hearing would have clearly produced evidence of the such, yet this was prejudicially denied. However, in the emails that were sent to Judge Luther's court administrator on June 1st, 2020 (which as referenced to above are an exhibit to the Motion for Recusal filed in L20-316) then provided to the judge presumably that same day, everything was discussed in plain detail. Appellant had assumed that the proper place to detail everything out would be through an evidentiary hearing. In taking the passed along advice to commence post-conviction relief proceedings, appellant did just that when at the last minute having no attorney representation, he submitted his petition to the Circuit Court of Lafayette County on July 7 2020 unaware that Judge Luther would insist upon being the judge on the matter. After the matter was assigned initially to Judge Kent Smith, Judge Luther ruled on the petition denying it, and further stepping in to deny the motions to follow leading to appellant filing a motion for recusal on August 12, 2020, citing several conflicts and erroneous

occurrences leading appellant to feeling that a recusal was necessary in this matter in the interest of fairness to his proceeding. At this time the official record is altered to reflect the trial judge as John Kelly Luther. Appellant states that assignment of cases in circuit court clearly can't be done randomly in the interest of fairness to the petitioner if an assignment can so easily be swapped around such as this. Furthermore, appellant raises serious grievances and concerns surrounding the trial judge John Kelly Luther and his insistence on being involved in every single matter regarding Justice Court and Circuit Court, as not only is he listed as the assigned judge on each listed matter in circuit court, but also insisted upon hand-picking the out-of-town justice court judge that would hear and rule upon appellant's more recent trial in Justice Court in which on nine separate charges alleged appellant was DENIED a trial by jury. Further it was shown to have been a mob-dominated trial filled with obnoxious proven perjurious testimony given under oath by Lafayette County Sheriffs Deputies including the Lafayette County Sheriff, and lacked the preservation of evidence despite it being requested and demanded on multiple instances by Defense. Seemingly again all procedure and jurisprudence was ignored and Appellant was adjudicated guilty on a majority of the charges which he in turn noticed the Circuit Court for de novo appeal under L21-494. This matter was assigned to Judge Kent Smith, communicated by the deputy circuit clerk, and well documented. Yet again for reasons unbeknownst to appellant Judge John Kelly Luther had mysteriously replaced Judge Kent Smith in the system as the assigned judge for the matter, leading to a shocking set of occurrences which undoubtedly will make their way before this court in due time and at the appropriate appellate level if they are not appropriately addressed and dealt with prior in the separate and proper venue. However, due to the same trial judge's insistence on staying involved on all matters and refusing to recuse, appellant felt it necessary and relevant to address these major grievances and alleged improprieties to the State Judiciary and requesting further review.

- 3) In addressing the remaining open matters contested, Appellant reasserts the following quoted case laws in asserting his position further asking that this court grant him oral arguments on the major issues and grievances surrounding the truth and facts which have transpired stemming from the original criminal matter which stemmed this post-conviction relief.
- A) Prejudice is actual harm resulting from the alleged constitutional violation.
Thomas v. Lewis, 945 F.2d 1119, 1123 (9th Cir. 1991)
- B) A fundamental miscarriage of justice' occurs when 'a constitutional violation has probably resulted in the conviction of one who is actually innocent.'" *Boyd v. Thompson*, 147 F.3d 1124, 1127 (9th Cir. 1998) (quoting *Murray*, 477 U.S. at 495-496, 106 S.Ct. 2639).
- C) "The requirement, in safeguarding the liberty of the citizen against deprivation through the action of the state, embodies the fundamental conceptions of justice which lie at the base of our civil and political institutions." *Hebert v. Louisiana*, 272 U.S. 312, 316, 317, 47 S.Ct. 103
- D) The court maintains discretion to address such issues on appeal even if they were waived and never properly presented to the trial court. See, e.g., *Tinnon v. Martin*, 716 So.2d 604, 613-14 (¶¶ 52, 57-58) (Miss.1998); *Fordice v. Bryan*, 651 So.2d 998, 1001 (Miss.1995) ; *State Hwy. Comm'n of Miss. v. McDonald's Corp.*, 509 So.2d 856, 860, 863 (Miss.1987)
- E) The prohibition in the Constitution that no person shall be deprived of his liberty except by due process of law was intended to guarantee the protection of fundamental and constitutional rights so that a fair trial may result, and where fundamental and constitutional rights are ignored due process does not exist and a fair trial can not be had. *Brooks v. State*, 209 Miss. 150, 151 (Miss. 1950)

 1-24-22
Matthew Rendon
Appellant

CERTIFICATE OF SERVICE

I, Matthew Reardon, certify that I have submitted this brief to the Clerk of the Court in good timing within the timeframe allotted, which sent notification to all counsel of record, and mailed, via U.S. Mail, postage pre-paid to the following:

Honorable John Kelly Luther
Circuit Court Judge
102 N. Main Street, Ste. F
Ripley, MS 38663

Mickey Mallette
Assistant District Attorney
Oxford, MS 38655

Honorable Ben Creekmore
District Attorney
111 East Main Street
New Albany, MS 38652

Barbara Byrd
Attn: Attorney General Lynn Fitch
P.O. Box 220
Jackson, Mississippi 39205-0220

THIS, the 19th day of January, 2022.

MATTHEW REARDON

/s/ Matthew Reardon

MATTHEW REARDON
PRO-SE APPELLANT

EXHIBIT

THIS POST-CONVICTION RELIEF PROCEEDING WAS INITIALLY ASSIGNED TO CIRCUIT COURT JUDGE KENT SMITH AS IS SHOWN BELOW.
ON 8-4-2020, IT WAS STILL ASSIGNED TO JUDGE SMITH, HOWEVER ON 7-30-2020, CIRCUIT COURT JUDGE JOHN KELLY LUTHER DENIED MY PCR



Circuit Court Cases Link

CIRCUIT CIVIL - LAFAYETTE COUNTY, MS

Current Date 8/7/2020

23 *PUBLIC - Log In | Log Out

CIVIL CASE FILE INQUIRY

CASE NUMBER **E20-316** FILE NO. 0014589 TYPE 1
DOCKET TYPE 1 DOCKET BOOK PAGE
COURT IDENTIFIER Circuit Court
COURT CODE CV
STYLED PLAINTIFF MATTHEW REARDON
STYLED DEFENDANT STATE OF MISSISSIPPI
CASE DESCRIPTION POST CONVICTION RELI
PLAINTIFF ATTORNEY
DEFENDANT ATTORNEY
JUDGE NAME **Kent E. Smith**
NATURE OF ACTION 1 3Y Post Conviction Relief
DATE FILED 7/7/2020 DATE ANSWERED
TRIAL BEGAN TRIAL ENDED
TRIAL TYPE (1=Jury, 2=Non Jury)
STATUS DATE 7/7/2020 1 Active
FINAL DISP.
REFERRED FROM CASE

EVENTS

DATE DESCRIPTION

7/30/2020 ORDER DENYING RELIEF REQUESTED

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CIRCUIT CIVIL - LAFAYETTE COUNTY, MS

Current Date 8/12/2020

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CIVIL CASE FILE INQUIRY

CASE NUMBER **E20-316** FILE NO. 0014589 TYPE 1
DOCKET TYPE 1 DOCKET BOOK PAGE
COURT IDENTIFIER Circuit Court
COURT CODE CV
STYLED PLAINTIFF MATTHEW REARDON
STYLED DEFENDANT STATE OF MISSISSIPPI
CASE DESCRIPTION POST CONVICTION RELI
PLAINTIFF ATTORNEY
DEFENDANT ATTORNEY
JUDGE NAME **Kent E. Smith**
NATURE OF ACTION 1 3Y Post Conviction Relief
DATE FILED 7/7/2020 DATE ANSWERED
TRIAL BEGAN TRIAL ENDED
TRIAL TYPE (1=Jury, 2=Non Jury)
STATUS DATE 7/7/2020 1 Active
FINAL DISP.
REFERRED FROM CASE

EVENTS

DATE DESCRIPTION
8/10/2020 MOTION FOR REHEARING UNDER MISSISSIPPI RULE 59 BEFORE THE
HONORABLE JUDGE KENT SMITH

7/30/2020 ORDER DENYING RELIEF REQUESTED
7/13/2020 AFFIDAVIT OF POVERTY
7/13/2020 MOTION FOR POST CONVICTION RELIEF W/EXHIBITS AND
CERTIFICATE OF SERVICE
7/13/2020 COVER SHEET

PARTIES

PARTY NAME PARTY TYPE PHONE NUMBER
Matthew Reardon PLAINTIFF PRIMARY
State Of Mississippi DEFENDANT PRIMARY

ADDENDUM

Back New Search

Circuit Court Cases Link

CIRCUIT CIVIL - LAFAYETTE COUNTY, MS

Current Date 8/12/2020

23 *PUBLIC - Log In | Log Out

CIVIL CASE FILE INQUIRY

CASE NUMBER **E20-316** FILE NO. 0014589 TYPE 1
DOCKET TYPE 1 DOCKET BOOK PAGE
COURT IDENTIFIER Circuit Court
COURT CODE CV
STYLED PLAINTIFF MATTHEW REARDON
STYLED DEFENDANT STATE OF MISSISSIPPI
CASE DESCRIPTION POST CONVICTION RELI
PLAINTIFF ATTORNEY
DEFENDANT ATTORNEY
JUDGE NAME **John Kelly Luther**
NATURE OF ACTION 1 3Y Post Conviction Relief
DATE FILED 7/7/2020 DATE ANSWERED
TRIAL BEGAN TRIAL ENDED
TRIAL TYPE (1=Jury, 2=Non Jury)
STATUS DATE 7/7/2020 1 Active
FINAL DISP.
REFERRED FROM CASE

EVENTS

DATE DESCRIPTION
8/12/2020 MOTION FOR RECUSAL W/EXHIBITS
8/10/2020 MOTION FOR REHEARING UNDER MISSISSIPPI RULE 59 BEFORE THE
HONORABLE JUDGE KENT SMITH
7/30/2020 ORDER DENYING RELIEF REQUESTED
7/13/2020 AFFIDAVIT OF POVERTY
7/13/2020 MOTION FOR POST CONVICTION RELIEF W/EXHIBITS AND
CERTIFICATE OF SERVICE
7/13/2020 COVER SHEET

PARTIES

PARTY NAME PARTY TYPE PHONE NUMBER
Matthew Reardon PLAINTIFF PRIMARY
State Of Mississippi DEFENDANT PRIMARY

ADDENDUM

Back New Search

All Cases assigned to Judge Luther
with 2 swapped to his name + him choosing Judge for Justice Court

Delta Computer Systems, Inc.

Delta Computer Systems, Inc.

Delta Computer Systems, Inc.

Delta Computer Systems, Inc.

Circuit Court Cases Link

CIRCUIT CRIMINAL - LAFAYETTE COUNTY, MS

Current Date 1/20/2022 83 PUBLIC - Lay In Lay Out

CRIMINAL CASE FILE INQUIRY				
CASE NUMBER	LR17-295	FILE NO.	0011493	TYPE 2
DOCKET TYPE	1 CRIMINAL - FELONY	DOCKET BOOK		PAGE
COURT IDENTIFIER	Circuit Court			
COURT CODE - CR				
STYLED PLAINTIFF	THE STATE OF MISSISSIPPI			
STYLED DEFENDANT	MATT REARDON			
CASE DESCRIPTION	AGGRAVATED CYBER STA			
PLAINTIFF ATTORNEY	Benjamin F. Creekmore			
DEFENDANT ATTORNEY	B. Brennan Horan			
JUDGE NAME	John Kelly Luther			
NATURE OF ACTION 1	CS Cyberstalking			
DATE FILED	7/7/2017			
CAPIAS: ISSUED	ANSWERED	RETURNED		
ARREST DATE	ARRAIGNMENT DATE	COURT DATE		
HEARING TYPE	(M=Motion, T=Trial, S=Sentencing, A=Arraignment)			
TRIAL BEGAN	TRIAL ENDED			
TRIAL TYPE	(1=Jury, 2=Non Jury)			
STATUS DATE	7/6/2017	1 Inactive case		
FINAL DISP	7/6/2017	* Reduced to Time Served		
BOND SET	BOND 2			
BOND MADE	PLEA	WAIVER		

CAPIAS DETAIL LINK	
DATE	DESCRIPTION

DATE	DESCRIPTION
1/7/2022	MOTION FOR HEARING DATE SEEKING DECISION ON ENTERED MOTION
Add To Cart	DOCUMENT 1 \$0.25
11/23/2021	MOTION FOR RELIEF FROM JUDGMENT OR ORDER, FILED
Add To Cart	DOCUMENT 25 \$6.25

DATE	DESCRIPTION
5/12/2020	TRANSCRIPT, FILED
Add To Cart	DOCUMENT 21 \$5.25
6/26/2020	TRANSCRIPTION FEE REQUESTED BY CHIEF DEPUTY MILLS
Add To Cart	DOCUMENT 1 \$0.25

Circuit Court Cases Link

CIRCUIT CIVIL - LAFAYETTE COUNTY, MS

Current Date 1/20/2022 83 PUBLIC - Lay In Lay Out

CIVIL CASE FILE INQUIRY				
CASE NUMBER	L17-233	FILE NO.	0012429	TYPE 1
DOCKET TYPE	1 DOCKET BOOK		PAGE	
COURT IDENTIFIER	Circuit Court			
COURT CODE	CV			
STYLED PLAINTIFF	MATTHEW REARDON			
STYLED DEFENDANT				
CASE DESCRIPTION	HABEAS CORPUS			
PLAINTIFF ATTORNEY	Kristian McCray			
DEFENDANT ATTORNEY				
JUDGE NAME	John Kelly Luther			
NATURE OF ACTION	1 3X HABEAS CORPUS			
DATE FILED	6/8/2017		DATE ANSWERED	
TRIAL BEGAN	TRIAL ENDED			
TRIAL TYPE	(1=Jury, 2=Non Jury)			
STATUS DATE	11/30/2018		2 IN-ACTIVE	
FINAL DISP.	11/30/2018 R ORDER OF DISMISSAL-STATE CASE			
REFERRED FROM CASE				

EVENTS	
DATE	DESCRIPTION

DATE	DESCRIPTION
11/30/2018	ORDER OF DISMISSAL-STATE CASE, FILED
Add To Cart	ORDER OF DISMISSAL-S 1 \$0.25
6/8/2017	ORDER ALLOWING MOVANT TO PROCEED IN FORMA PAUPERIS
Add To Cart	ORDER ALLOWING MOVAN 1 \$0.25
6/8/2017	MOTION FOR WRIT OF HABEAS CORPUS SEEKING BAIL REDUCTION FILED W/CERT
Add To Cart	MOTION FOR WRIT OF H 3 \$0.75
6/8/2017	COVER SHEET
Add To Cart	COVER SHEET 1 \$0.25

Circuit Court Cases Link

CIRCUIT CIVIL - LAFAYETTE COUNTY, MS

Current Date 1/20/2022 83 PUBLIC - Lay In Lay Out

CIVIL CASE FILE INQUIRY				
CASE NUMBER	L20-316	FILE NO.	0014589	TYPE 1
DOCKET TYPE	1	DOCKET BOOK		PAGE
COURT IDENTIFIER	Circuit Court			
COURT CODE	CV			
STYLED PLAINTIFF	MATTHEW REARDON			
STYLED DEFENDANT	STATE OF MISSISSIPPI			
CASE DESCRIPTION	POST CONVICTION RELI			
PLAINTIFF ATTORNEY				
DEFENDANT ATTORNEY				
JUDGE NAME	John Kelly Luther			
NATURE OF ACTION	1 3Y POST CONVICTION RELIEF			
DATE FILED	7/7/2020		DATE ANSWERED	
TRIAL BEGAN	TRIAL ENDED			
TRIAL TYPE	(1=Jury, 2=Non Jury)			
STATUS DATE	7/7/2020		1 ACTIVE	
FINAL DISP				

EVENTS	
DATE	DESCRIPTION

DATE	DESCRIPTION
1/3/2022	ORDER FROM SUPREME COURT- JANUARY 6 2022 (ADDITIONAL OF TIME)
Add To Cart	ORDER FROM SUPREME C 1 \$0.25
11/15/2021	ORDER FROM SUPREME COURT-EXPEDITE APPEAL IS DENIED
Add To Cart	ORDER FROM SUPREME C 3 \$0.75
9/13/2021	ORDER FROM SUPREME COURT-EXTENSION FOR ADDITIONAL TIME
Add To Cart	ORDER FROM SUPREME C 1 \$0.25
8/30/2021	ORDER, FILED

Circuit Court Cases Link

CIRCUIT CIVIL - LAFAYETTE COUNTY, MS

Current Date 1/20/2022 83 PUBLIC - Lay In Lay Out

CIVIL CASE FILE INQUIRY				
CASE NUMBER	L21-494	FILE NO.	0015375	TYPE
DOCKET TYPE	1 DOCKET BOOK			PAGE
COURT IDENTIFIER	Circuit Court			
COURT CODE	CV			
STYLED PLAINTIFF	MATTHEW REARDON			
STYLED DEFENDANT	STATE OF MISSISSIPPI			
CASE DESCRIPTION	APPEAL FROM JUSTICE			
PLAINTIFF ATTORNEY				
DEFENDANT ATTORNEY				
JUDGE NAME	John Kelly Luther			
NATURE OF ACTION	1 7Q OTHER			
DATE FILED	12/3/2021		DATE ANSWERED	
TRIAL BEGAN	TRIAL ENDED			
TRIAL TYPE	(1=Jury, 2=Non Jury)			
STATUS DATE	12/3/2021		1 ACTIVE	
FINAL DISP.				
REFERRED FROM CASE				

EVENTS	
DATE	DESCRIPTION

DATE	DESCRIPTION
1/10/2022	MOTION TO SEAL IFP AFFIDAVIT
Add To Cart	DOCUMENT 1 \$0.25
1/7/2022	MOTION TO SCHEDULE HEARING FOR DE NOVO APPEAL FILED W/EXHIBIT
Add To Cart	MOTION TO SCHEDULE H 4 \$1.0
1/7/2022	MOTION FOR HEARING DATE FOR DECISION ON MOTION
Add To Cart	MOTION FOR HEARING D 1 \$0.2
1/7/2022	AFFIDAVIT OF POVERTY
Add To Cart	AFFIDAVIT OF POVERTY 2 \$0.5
1/3/2022	AFFIDAVIT / DECLARATION OF TRUTH
Add To Cart	DOCUMENT 12 \$3.00
12/3/2021	MOTION TO ALTER OR AMEND JUDGMENT UNDER MRCP 59(E) OF THE ALTERNATIVE TO VACATE JUDGMENT ENTERED PURSUANT MRCP 60(B) (1,2,4,6)
Add To Cart	DOCUMENT 12 \$3.00
12/3/2021	COVER SHEET